

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of October 25, 2023 (the "Effective Date"), by and between:

Vanguard Analytics Inc., a corporation organized under the laws of Delaware, USA, with its principal place of business at 450 Lexington Ave, New York, NY 10017, USA ("Vanguard"); and

Zenith Logic Pty Ltd, a company incorporated in Australia with its registered office at 201 Elizabeth Street, Sydney, NSW 2000, Australia ("Zenith").

Vanguard and Zenith are collectively referred to as the "Parties" and individually as a "Party."

1. PURPOSE

The Parties intend to engage in discussions and a Proof of Concept (PoC) involving the integration of proprietary analytical algorithms and decisioning workflows (the "Purpose"). In the course of this Purpose, Vanguard (as a primary Discloser) and Zenith may exchange sensitive commercial and technical information.

2. CONFIDENTIAL INFORMATION

"Confidential Information" means all non-public, proprietary, or confidential information disclosed by a Party ("Discloser") to the other Party ("Recipient"), whether orally, visually, or in writing, that is designated as confidential or which should be reasonably understood to be confidential given the nature of the information.

3. EXCLUSIONS

Confidential Information shall not include information that: (a) is or becomes generally available to the public other than as a result of a breach of this Agreement; (b) was in the Recipient's possession prior to disclosure; (c) is received from a third party without restricted at rest; or (d) was independently developed by the Recipient without use of the Discloser's Confidential Information.

4. NON-USE AND NON-DISCLOSURE

The Recipient agrees: (a) To use the Confidential Information solely for the Purpose described in Section 1; (b) To protect the Confidential Information using the same degree of care it uses for its own sensitive data, but no less than a reasonable standard of care; and (c) To disclose Confidential Information only to employees or consultants who "need to know" and are bound by confidentiality obligations no less restrictive than those herein.

5. CONFIDENTIALITY PERIOD

The obligations of non-disclosure and non-use under this Agreement shall survive and continue for a period of ten (10) years from the date of the initial disclosure of the Confidential Information.

6. TERM AND NOTICE PERIOD

This Agreement shall remain in effect until the completion of the Purpose or until terminated by either Party. Either Party may terminate this Agreement by providing twenty (20) days prior written notice to the other Party. Termination shall not affect the survival of confidentiality obligations under Section 5.

7. LIMITATION OF LIABILITY

To the maximum extent permitted by law, neither Party shall be liable for any indirect, consequential, or punitive damages. The total aggregate liability of either Party for any claim arising out of this Agreement shall not exceed AUD \$75,000.

8. COMPELLED DISCLOSURE

If the Recipient is required by law or legal process to disclose any Confidential Information, it shall provide the Discloser with prompt written notice of such request to allow the Discloser to seek a protective order or other appropriate remedy.

9. GOVERNING LAW AND JURISDICTION

This Agreement, and all matters arising out of or relating to this Agreement, shall be governed by and construed in accordance with the laws of New South Wales, Australia. The Parties irrevocably submit to the exclusive jurisdiction of the courts located in Sydney, New South Wales.

10. ENTIRE AGREEMENT

This Agreement represents the entire understanding between the Parties regarding the subject matter and supersedes all prior agreements. No amendment shall be valid unless executed in writing by authorized representatives of both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

For Vanguard Analytics Inc. (USA):

Signature: _____

Name: Robert Sterling

Title: VP of Global Operations

For Zenith Logic Pty Ltd (Australia):

Signature: _____

Name: Sarah Jenkins

Title: Director of Innovation